

COMMUNITY GUIDE TO THE FINDINGS AND CONDITIONS

Separate review of the April 14, 2026 ZA Notice of Decision and July 1, 2026 CPC/Board of Adjustment decision
ZCOA2026-0013 | ZA2026-0024 / ZBA2026-0001

Purpose and status key. This unofficial reader's guide summarizes already-filed appeal materials, the available original CUP application materials, and the certified July 1 CPC hearing transcript. It does not amend the appeal, submit new evidence, or replace the official record.

Central clarification. This guide frames the real appeal issue correctly: it is **not** that every final engineering document was mandatory at the CUP stage. Final construction-level traffic, drainage, fire, and related review may occur during building-permit review under County procedures. The appeal issue is whether the evidence before the ZA and CPC was sufficient to support the required CUP findings when they acted.

Status key. *Supported / no separate appeal issue identified* means the item is an accurate fact, definition, disclaimer, or ordinary enforceable requirement. *Mixed record / appeal issue* means the record contains support and unresolved questions that the appeal identifies. *Valid future condition; does not cure pre-approval evidence issue* means a later safeguard may be enforceable but is not, by itself, evidence supporting an earlier CUP finding. *Unsupported as stand-alone mitigation* means a possible measure was discussed but no binding, measurable, enforceable restriction was adopted.

I. Application-Level Traffic Record

The CUP form required the applicant to prove that undue traffic congestion or hazards would not be created and to submit a written justification addressing that criterion. The form did not require every possible traffic analysis or each final construction-review item described in this guide. The Applicant responded "See attached." The original application materials identified here contain general statements about working with authorities, the importance of adequate parking and traffic flow, and coordinating prayer times.

The original CUP application packet identified here does not include a Traffic Scoping Report, Traffic Impact Analysis, trip-generation calculation, traffic count, capacity analysis, traffic-engineer report, or comparable project-specific traffic-engineering analysis. It also contains no defined mitigation plan, binding service-time restriction, or vehicle, visitor, or attendance cap. The original application stated that expected traffic "will be significant," in a description that included the then-proposed school/daycare use. These observations do not assert that every listed item was a mandatory CUP attachment; they identify the evidence available for the CUP traffic finding.

The County's CUP materials place the burden on the applicant to demonstrate that the use can be developed without undue traffic congestion or hazards. Later technical review may be required, but a later review does not itself establish what evidence supported the earlier CUP finding. [CUP application; certified transcript TR-205–214.]

II. ZA Notice of Decision — April 14, 2026

The ZA NOD contains 12 findings and 3 conditions. March 11 and April 8 hearing transcripts are not available in the materials reviewed for this guide; this section relies on the ZA NOD, original CUP application, and already-filed appeal materials.

Finding / condition	Status	Why / appeal relevance
1. Church and incidental facilities	Mixed record / appeal issue	The appeal challenges original scope because record materials depict school/daycare and educational uses. Later CPC proceedings addressed school withdrawal but do not resolve what the ZA record contained.
2. Site adequate in size and shape	Mixed record / appeal issue	3.9 acres and no variance are facts. The appeal challenges whether that evidence established access, parking, traffic capacity, drainage, fire access, and full-project capacity.
3. Ingress/egress; no undue traffic hazards	Mixed record / appeal issue	The original CUP application required proof of this criterion but did not include a project-specific traffic-engineering analysis. The NOD anticipated later TIA and Public Works review.
4. No adverse neighborhood effect / character conflict	Mixed record / appeal issue	The appeal challenges whether the NOD reconciled project scale, nearby homes, traffic, drainage, lighting, noise, rural character, and planning policies.
5. Enumerated conditional use	Supported / no separate appeal issue identified	Correctly states the use is conditional. Listing does not establish the separate CUP criteria.
6. Intended parking / landscaping / buffers / fencing	Mixed record / appeal issue	The appeal argues that stated intentions do not alone establish completed compliance or adequate, enforceable mitigation.
7. Friday service could be moved	Unsupported as stand-alone mitigation	No binding schedule, peak restriction, attendance/vehicle cap, or enforcement mechanism was adopted.
8. Opposition reported traffic concerns	Supported / no separate appeal issue identified	Accurate report of testimony; it does not resolve the traffic question.
9. Future TIA; possible improvements	Mixed record / appeal issue	The appeal challenges reliance on later review and the stated Friday peak-hour premise.
10. Conditions protect welfare	Mixed record / appeal issue	The appeal identifies unresolved traffic, drainage, emergency-access, lighting, noise, and operating-control questions.
11. Rural Area location	Location supported; compatibility appeal issue	Rural Area location is not disputed; compatibility with applicable ABC/North Valley policies is.
12. Limited approval / no waiver	Supported / no separate appeal issue identified	Standard limitation and disclaimer.

ZA Conditions

Finding / condition	Status	Why / appeal relevance
1. Permits and submitted footprint	Valid condition; no separate appeal issue identified	Standard enforceable permit and footprint requirement. It does not independently decide traffic, drainage, emergency access, or compatibility.
2. Impervious-surface coordination	Valid future condition; does not cure pre-approval evidence issue	Specific later design guidance. The appeal argues it does not demonstrate drainage/hydrology adequacy at CUP approval.
3. No outdoor amplified sound	Valid condition; no separate appeal issue identified	Enforceable outdoor-sound restriction; broader operating impacts remain separate.

III. CPC / Board of Adjustment Decision — July 1, 2026

The CPC review incorporates the certified July 1 transcript. The transcript confirms later safeguards and also identifies unresolved traffic, scope, and site-specific questions when the CPC acted.

Finding / condition	Status	Why / appeal relevance
1. Church and incidental facilities	Mixed record / appeal issue	Staff said the school had become a separate-CUP-level use; the applicant withdrew school/daycare; revised material was accepted. The appeal challenges the final scope and program/floor-area clarity. TR-82–85; TR-219–221.
2. CZO definition of church	Supported / no separate appeal issue identified	Ordinance definition; it does not independently establish all CUP criteria.
3. Site adequate in size and shape	Mixed record / appeal issue	Updated material showed about a 43,000-SF ground-floor footprint with parking/landscaping. Staff called CUP material conceptual and sought clarity. TR-83–84; TR-218–221.
4. Ingress/egress; improvements may be required	Mixed record / appeal issue	Public Works described later TIA and mitigation. No project-specific TIA or quantified site trips existed when CPC acted. TR-205–214.
5. Mixed uses; proposal adds to mix	Mixed record / appeal issue	The appeal challenges whether the general mixed-use discussion sufficiently supported compatibility in light of rural designation, nearby residences, scale, traffic, and planning policies.
6. Enumerated conditional use	Supported / no separate appeal issue identified	Correct zoning observation; separate CUP criteria still apply.
7. Intended parking / buffers / fencing	Mixed record / appeal issue	Applicant described walls, buffers, parking, and revised materials. The appeal challenges whether those materials and final scope were sufficiently specific and enforceable.
8. Friday service could be moved	Unsupported as stand-alone mitigation	Hours may be possible mitigation, but no fixed schedule, cap, or enforcement mechanism was identified. TR-206; TR-210; TR-213–214.
9. Opposition traffic concerns	Supported / no separate appeal issue identified	Accurate report of testimony; Luna acknowledged regional Alameda congestion.
10. Opposition compatibility concern	Supported / no separate appeal issue identified	Accurate report of testimony.
11. TIA at building permit	Valid future condition; does not cure pre-approval evidence issue	TIA, mitigation, and improvements were required before permit/opening; no project-specific TIA existed when CPC acted. TR-205–214.
12. Roadway jurisdiction	Supported / no separate appeal issue identified	County, NMDOT, and City roles were identified.
13. Conditions protect welfare	Mixed record / appeal issue	Some conditions existed, while traffic, fire, grading, and drainage review were later-stage matters. The appeal disputes whether the CUP record supported the finding.
14. Rural Area	Location supported; compatibility appeal issue	Designation is not disputed. The appeal challenges whether the record sufficiently supported compatibility with applicable planning policies.
15. Limited to church use	Supported as limitation; scope addressed under Finding 1	Standard limitation; final program clarity is addressed under Finding 1.

III. CPC Conditions (continued)

Finding / condition	Status	Why / appeal relevance
1. School not allowed	Partially supported; remaining scope / plan issue	Staff said school needed separate CUP treatment; applicant withdrew it; supplemental material was accepted. Remaining issue is final scope and plan specificity.
2. Permits and footprint	Valid condition; no separate appeal issue identified	Standard enforceable permit and footprint requirement.
3. 60,000-SF maximum / 43,000-SF footprint	Mixed record / appeal issue	Transcript supports adoption of the cap and about a 43,000-SF footprint. The appeal questions independent support for the 60,000-SF cap and its traffic basis.
4. Impervious-surface coordination	Valid future condition; does not cure pre-approval evidence issue	Staff stated full grading/drainage plan occurs at building permit.
5. No amplified sound outside	Valid condition; no separate appeal issue identified	Staff explained the nearby-residence rationale; County noise ordinance also applies.
6. Height limited to 26 feet	Valid condition; no separate appeal issue identified	Staff stated A-1 height is limited to 26 feet, and applicant represented the building would not exceed it. Final construction compliance is later permitting/enforcement.
7. Parking under Section 21	Valid code-compliance condition; separate adequacy issue	Final code compliance is determined through later review. The appeal separately challenges whether the CUP record established site adequacy and traffic impacts.
8. Landscaping / Water Conservation	Valid code-compliance condition; separate compatibility issue	Final compliance is determined through later review. The appeal separately challenges whether the CUP record established compatibility and buffering.
9. TIA at building permit	Valid future condition; does not cure pre-approval evidence issue	Public Works confirms a later safeguard, but trips and impacts were not quantified when CPC decided. TR-205–214.
10. NMDOT requirements	Valid condition; no separate appeal issue identified	NMDOT was identified as a reviewing agency for the relevant corridor.
11. Six-foot wall / fence	Valid enforceable condition; later compliance issue	Applicant described six-foot walls. Final construction compliance is for permitting and enforcement.
12. Light Pollution / Night Sky	Valid code condition; no separate appeal issue identified	Exact final ordinance compliance is a later review/enforcement matter.
13. Signage under Section 12 / O-1	Valid code condition; no separate appeal issue identified	No distinct hearing analysis was located; the condition remains an enforceable code requirement.
14. Grading / drainage plan at building permit	Valid future condition; does not cure pre-approval evidence issue	Full plan occurs at building permit. The appeal challenges whether the CUP record itself supported the prior welfare and adequacy findings.
15. Noise Ordinance compliance	Valid code condition; no separate appeal issue identified	County noise ordinance and outdoor amplified-sound restriction were confirmed.

IV. Clarifying the Appeal Issue

What the appeal does not contend. The appeal does not contend that every final engineering document—such as final TIA, final drainage plan, fire review, or construction-level drawings—had to be completed before the CUP could be considered. County procedures place important technical review at the building-permit stage.

What the appeal does contend. The appeal contends that the evidence available to the ZA and CPC when they acted was insufficient to support the CUP findings they were required to make, especially the traffic finding. The County's CUP materials put the burden on the applicant to show that the proposed use could be developed without undue traffic congestion or hazards. The appeal asks whether the CUP record contained enough evidence to support that conclusion at the time of approval.

Later review does not answer the earlier evidentiary question. Ms. Luna testified that the County would require a TIA at building permit and would not issue a building permit without a completed assessment and agreed mitigation; the facility would not be allowed to open until required constructed improvements were complete. Those are real later safeguards. But they do not themselves establish what evidence supported the prior CUP finding. TR-205:1–17; TR-206:3–12.

Project-specific evidence and possible outcomes. A project-specific traffic scope or TIA prepared before the CUP decision could have supplied additional information about trip generation, access points, intersections, and potential conditions. It would not have predetermined denial. Depending on the evidence, it could have supported denial, continuance, remand, redesign, enforceable operating limits, project-specific mitigation, or approval. The appeal's question is whether the record as it existed supported the required CUP traffic finding.

Certified-record context. Commissioner Withers asked how the CPC could evaluate added traffic without knowing the amount of traffic the project would generate. Director Hamm stated that the Board could adjust conditions but acknowledged “some subjectivity” because the CPC did not then have the traffic-impact analysis. Ms. Luna acknowledged Alameda's regional congestion and distinguished mitigation of added site traffic from mitigation of regional traffic issues. TR-207:16–25; TR-208:1–20; TR-209:1–24; TR-213:11–17.

Applicant and staff positions distinguished. The applicant represented that, without the school, there would be no traffic problem and that a traffic study would be generated with or without school. The certified transcript does not show the applicant saying that the project did not need its own TIA. Ms. Luna stated that corridor studies may provide useful insights but that this project “does need to have its very own traffic study for this location.” TR-86:22–25; TR-87:1–9; TR-210:17–24.

V. Conclusion

The record includes real later-stage safeguards. It also shows that the original CUP application did not include a project-specific traffic-engineering analysis supporting the traffic criterion. The certified transcript further reflects that a project-specific TIA, final drainage review, fire review, and portions of final design review were assigned to later permitting stages. The appeal does not contend that those construction-level reviews could never occur later. Its central contention is that the evidence available to the ZA and CPC when they acted was insufficient to support the required CUP findings—particularly the finding concerning undue traffic congestion or hazards.

This guide explains evidence already in the record. It does not amend the filed appeal, add evidence, or replace the official record.